

House File 948

H-1192

1 Amend House File 948 as follows:

2 1. Page 3, line 31, by striking <MEDICAID FOR EMPLOYED
3 PEOPLE WITH DISABILITIES> and inserting <WORK WITHOUT WORRY>

4 2. By striking page 3, line 32, through page 4, line 32, and
5 inserting:

6 <Sec. _____. NEW SECTION. 2490.1 Definitions.

7 As used in this chapter, unless the context otherwise
8 requires:

9 1. "*Countable income*" means the income of an individual when
10 the income is received and can be used to meet the individual's
11 needs for food, clothing, and shelter. "*Countable income*" does
12 not include the income of another member of the individual's
13 household, or certain receipts as described in 20 C.F.R.
14 §416.1103.

15 2. "*Department*" means the department of health and human
16 services.

17 3. "*Disability*" means a qualifying disability as determined
18 by the federal social security administration, or the
19 individual is determined by the department to have a physical
20 or mental impairment, or combination of impairments, that have
21 lasted or are expected to last for at least twelve months or
22 result in death.

23 4. "*Long-term services and supports*" means the broad
24 range of health, health-related, and personal care assistance
25 services and supports, provided in home and community-based
26 settings, necessary for persons with disabilities who
27 experience limitations in their capacity for self-care due to a
28 physical, cognitive, or mental disability or condition.

29 5. "*Program*" means the work without worry program
30 established in section 2490.3.

31 Sec. _____. NEW SECTION. 2490.2 Program — intent.

32 It is the intent of the general assembly to remove barriers
33 to employment for individuals who, but for income and
34 resources, meet the definition of disability, by providing
35 medical assistance to employed individuals with disabilities

1 through a work without worry program in accordance with section
2 1902(a)(10)(A)(ii)(XIII) of the federal Social Security Act,
3 and Medicaid eligibility, using less restrictive income and
4 resource requirements through the application of section
5 1902(r)(2) of the federal Social Security Act, and cost-sharing
6 requirements established by the department and approved by the
7 centers for Medicare and Medicaid services of the United States
8 department of health and human services.

9 Sec. _____. NEW SECTION. **2490.3 Program — established.**

10 1. The work without worry program is established under the
11 medical assistance program and shall be administered by the
12 department to provide employed individuals with disabilities
13 access to health care coverage through the medical assistance
14 program.

15 2. Except as otherwise specified in this chapter,
16 provisions applicable to the medical assistance program
17 pursuant to chapter 249A shall be applicable to the program.

18 3. In addition to the benefits received under the program,
19 an individual shall have access to all traditional Medicaid
20 services under the medical assistance program, as well as
21 additional long-term services and supports and community-based
22 services, including waiver services, for which the individual
23 meets any applicable level of care requirements.

24 4. The department shall make every effort to coordinate
25 benefits with the health care coverage provided by an employer
26 of an employed individual with a disability receiving benefits
27 under this chapter.

28 Sec. _____. NEW SECTION. **2490.4 Program — eligibility.**

29 1. Except as otherwise provided in this chapter, an
30 individual may participate in the program if the individual
31 meets all of the following criteria:

32 a. The individual is eligible for the medical assistance
33 program under chapter 249A.

34 b. The individual is at least eighteen years of age.

35 c. The individual is less than sixty-five years of age.

1 *d.* The individual has a disability.

2 *e.* The individual is employed, earns income from employment
3 which may include self-employment, and works at least one hour
4 per month.

5 2. The department shall not adopt a rule for program
6 eligibility based upon any of the following:

7 *a.* An individual's income or resources.

8 *b.* A resource test or limit.

9 *c.* An individual's receipt of federal disability benefits.

10 3. An individual who receives supplemental security
11 income shall be automatically eligible for the program and may
12 participate in the program.

13 4. An individual may be eligible for or receive other health
14 care coverage including through an employer, through Medicare,
15 or through the medically needy program, the qualified Medicare
16 beneficiary program, or the specified low-income Medicare
17 beneficiary program. If the individual has such other coverage
18 and is subject to payment of copayments or premiums for that
19 coverage, notwithstanding the premium requirements under the
20 program to the contrary, the individual shall not be subject to
21 payment of premiums otherwise applicable under the program.

22 Sec. _____. NEW SECTION. 2490.5 Program — premiums.

23 1. An individual's monthly program premium amount shall
24 equal, rounded down to the nearest whole dollar, any of the
25 following:

26 *a.* If the individual's verified countable income is less
27 than one hundred fifty percent of the federal poverty level
28 applicable to the individual's household's size, zero percent
29 of the individual's verified countable income.

30 *b.* If the individual's verified countable income is between
31 one hundred fifty percent and two hundred fifty percent of
32 the federal poverty level applicable to the individual's
33 household's size, three percent of the individual's verified
34 countable income.

35 *c.* If the individual's verified countable income is more

1 than two hundred fifty percent of the federal poverty level
2 applicable to the individual's household's size, six percent of
3 the individual's verified countable income.

4 2. a. An individual shall report any change in the
5 individual's countable income to the department.

6 b. The department shall utilize the individual's verified
7 countable income until the individual reports a change in
8 countable income and the change is processed by the department,
9 unless there is good cause for the department's delay in
10 verifying the change in the individual's countable income.

11 c. A change in an individual's program premium amount shall
12 be effective the month after the change in the individual's
13 countable income is reported to and verified by the department.

14 3. An individual shall be covered under the program for
15 six consecutive months beginning the first day of the month in
16 which the department approves the individual's application for
17 the program.

18 4. The department shall create a six-month grace period that
19 provides continuous program coverage to an individual following
20 the individual's temporary loss of employment, or a health
21 crisis that temporarily prevents the individual from continuing
22 employment. The individual shall be required to continue to
23 pay the program premium based on the individual's verified
24 countable income during the six-month grace period.

25 5. The department may terminate an individual's program
26 coverage if the individual fails to pay four consecutive months
27 of program premiums.

28 6. An individual must pay a program premium in full for any
29 month that program coverage is provided, including a month when
30 a redetermination of coverage is made, a month when continued
31 coverage is requested, and during the period of an eligibility
32 determination appeal.

33 Sec. ____ . NEW SECTION. 2490.6 Rules.

34 The department shall adopt rules pursuant to chapter 17A to
35 administer this chapter.

1 Sec. _____. WORK WITHOUT WORRY PROGRAM — DEPARTMENT OF HEALTH
2 AND HUMAN SERVICES.

3 1. The department of health and human services shall submit
4 any waiver request or state plan amendment, or combination
5 thereof, to the centers for Medicare and Medicaid services of
6 the United States department of health and human services as
7 necessary to create a work without worry program in accordance
8 with this Act.

9 2. Any individual participating in the Medicaid for
10 employed persons with disabilities program when the work
11 without worry program is implemented shall be transferred to
12 and enrolled in the work without worry program.

13 Sec. _____. EFFECTIVE DATE. This division of this Act, being
14 deemed of immediate importance, takes effect upon enactment.>

15 3. Title page, by striking lines 4 and 5 and inserting
16 <modernization fund, and the work without worry program, and
17 including effective date provisions.>

18 4. By renumbering as necessary.

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